

FILED
STATE OF MISSISSIPPI
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

2021 JAN -4 PM 2:46
CHANCERY CLERK

PHYLLIS MARIE CROWDER-KESTER
VS.
MATTHEW OLIVER REARDON

PLAINTIFF
CAUSE NO. CV2016-422(W)
DEFENDANT

BY DC. TJ

MOTION TO STAY PROCEEDINGS

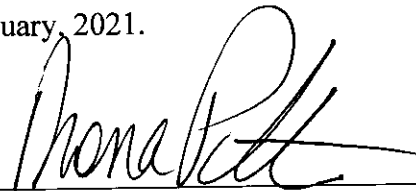
COMES NOW Phyllis Marie Crowder-Kester, Plaintiff, by and through counsel, and files this her Motion to Stay Proceedings and would show unto the Court as follows:

1. On December 22, 2020, the Defendant in the matter filed a Petition for Permission to Interlocutory Appeal to the Mississippi Supreme Court. The Court entered a Notice of Retention on the same date. As this Petition is currently pending in the Supreme Court, the Plaintiff requests a Motion to Stay this matter until the matter pending before the Supreme Court is finalized.

WHEREFORE, PREMISES CONSIDERED, Phyllis Marie Crowder-Kester, respectfully requests that this Court stay this matter.

Respectfully submitted, this the 4th day of January, 2021.

BY:



MONA T. PITTMAN, MS BAR NO. 9754
COUNSEL FOR PLAINTIFF
P.O. BOX 2958
OXFORD, MS 38655
(662) 234-9346 TELEPHONE
(662) 234-9748 FACSIMILIE
mona@panola.com

CERTIFICATE OF SERVICE

I, Mona T. Pittman, do hereby certify that I have this date provided a true and correct copy of the foregoing Motion to:

Matthew Oliver Reardon, Pro Se
117 CR 401
Oxford, MS 38655

This, the 4th day of January, 2021.



MONA T. PITTMAN

IN THE CHANCERY COURT OF THE STATE OF MISSISSIPPI
LAFAYETTE COUNTY

2021 JAN 12 PM 3:58

Phyllis Marie Crowder-Kester

CHANCERY CLERK Plaintiff/Petitioner

Vs

BY DC

TS

Cause # CV2016-422W

Matthew Oliver Reardon

Defendant/Respondent

Amended

MOTION TO DISMISS

Comes Now your Defendant, Matthew Reardon, and hereby moves this honorable court to dismiss the Plaintiffs Petition for Modification pursuant to MRCP Rule 12(b)(1) or in the alternative MRCP Rule 12(b)(6) and would state as follows in support of said motion, to wit:

1. On August 26, 2020 Counsel for the Plaintiff filed a "Petition for Citation of Modification and Other Relief" in the Chancery Court of Lafayette County which was signed and sworn via affidavit on the 25th day of August, 2020. Stamped Petition attached as Exhibit A.
2. That on September 30, 2020 the aforementioned petition disappeared from the system and was replaced with a newly filed petition which was modified to a "Petition for Modification and other relief" which had a corrected date left off of the prior petition that was fast filed in this court just over a month prior. The re-filed petition is attached hereto as Exhibit B.
3. This honorable court has subject matter to hear said Petitions brought under Mississippi Code Ann § 93-21-5(1) so long as said Petition complies with the requirements laid out in the statute.

4. Plaintiffs Petition for Modification and Other Relief is void on its face as it fails to comply with the statutory requirement laid out in § 93-21-9(8) Miss. Code. Ann. which states that "Every petition shall be signed by the petitioner under oath that the facts and circumstances contained in the petition are true to the best knowledge and belief of the petitioner."
5. Petitioner's legal council chose to knowingly defraud both this court, the respondent, and the Notary Public utilized by petitioner by knowingly attaching the notarized and signed affidavit on the subsequent petition filed in this court on September 30, 2020. Not only does the Notary Stamp line up precisely with the notarized copy filed on August 26, 2020 and have the same matching signatures, but the notarized affidavit on the sequential filing filed September 30, 2020 even reflects the original date of August 26, 2020 making this petition filed null and void as the notary in this matter never attested to this particular petition and further should be a matter of grave concern not only to this court but should be to the Notary Public that the Petitioner's legal council is using duplicate copies of her notary stamp to affirm official legal documents filed in this court.
6. Petitioner's most recently filed motion to stay proceedings in fact lists erroneous dates further suggesting that the petitioner's legal council is not filing true and accurate documents with this court as respondent did not file his petition for interlocutory appeal December 22nd, 2020 and in fact did not even file it in the month of December. Furthermore, this court never issued a notice of retention on the same day nor did this court even enter a notice of retention in this matter.

WHEREFORE ALL PREMISES CONSIDERED

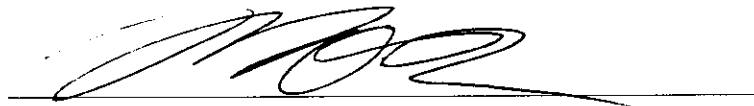
Respondent Matthew Oliver Reardon would state before this court and affirm via sworn affidavit that the Petitioner in this cause never once held a true and valid claim and respondent reaffirms the exact same position that he has since day one. Petitioner filed a false, frivolous, and fraudulent petition with this court in order to rig and further pad her own favorable outcome in a prior legal matter involving Olive Branch Municipal Court, which respondent of the impression should be evident to this court with the motions and exhibits respondent

has filed up to now. As such and due to the new evidence of a fraudulent petition presented, Respondent would move this honorable court to dismiss the petition filed by petitioner. Respondent would request that this court order petitioner to immediately purge herself of her contumacious ways in regards to the child visitation agreement, award respondent the ability to make up all lost time with his minor child over the past 12 months which was unfairly stolen from the respondent by the malice hands of the petitioner and her council, and to award the respondent a recovery of damages in the amount of \$15,000 in order to justly compensate respondent for the amount of time and resources expended in preparing and responding to this action, along with the extreme mental anguish stemming from the grossly negligent and contumacious actions and decisions of the petitioner and her legal counsel.

Movant would additionally pray upon this court to award any additional relief, be it special or general, which he may be entitled to or that it sees warranted in such matter

The information submitted has been given voluntarily and truthfully sworn under penalty of perjury for
knowingly false statements made

Respectfully Submitted this ^{12th}~~11th~~ day of January, 2021



Matthew Oliver Reardon

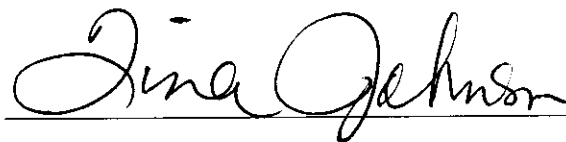
Movant/Defendant/Respondent

117 CR 401

Oxford, MS 38655

matt@mattreardon.com

662-812-1613



1/12/2021

Notary

~~Witnessed~~

Exhibit A

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI
LAFAYETTE COUNTY

PHYLLIS MARIE CROWDER

PLAINTIFF

vs.

2020 AUG 26 AM 10:17

CAUSE NUMBER: CV-2016-422W

CHANCERY CLERK

MATTHEW OLIVER REARDON

DEFENDANT

BY: DC

KC

PETITION FOR CITATION OF MODIFICATION AND OTHER RELIEF

COMES NOW the Plaintiff, Phyllis Marie Crowder, and files this her Petition for Modification and Other Relief against the Defendant, Matthew Oliver Reardon, and in support thereof would respectfully show unto the Court the following:

1.

This Court has personal and subject matter jurisdiction in this matter.

2.

That the Defendant, Matthew Oliver Reardon, is an adult resident citizen of Lafayette County, Mississippi, and may be served with process at his residence in Lafayette County, Mississippi, or wherever he may be found.

3.

That on August _____, This Court entered an Agreed Order of Modification regarding child visitation, a true and correct copy of which is attached hereto as Exhibit "A".

4.

That there has been a material change in circumstance that has adversely affected the minor child and therefore visitation with the Defendant has ceased. The Defendant abuses alcohol and/or other prescription or non-prescription drugs to the point that he no longer safely monitors the minor child while she is in the Defendant's care which has caused physical injury to the minor child at the hands of the Defendant's current wife at which point visitation with the Defendant ceased. The incident was reported to the State of Mississippi Child Protective Services and in the interim, the Plaintiff was advised to cease all visitation with the Defendant. The Plaintiff therefore requests the

Court and for a Guardian Ad Litem to be appointed for the minor child.

5.

Additionally the Plaintiff would show that the Defendant's behavior has become erratic both on social media and in person and the Plaintiff fears for the safety of the minor child for the Defendant to be exercising the current visitation in the midst of the pandemic.

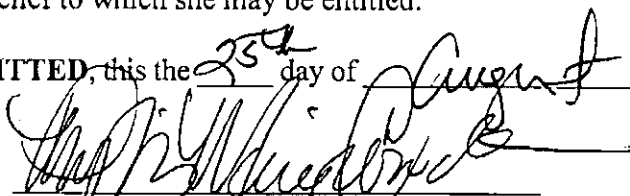
6.

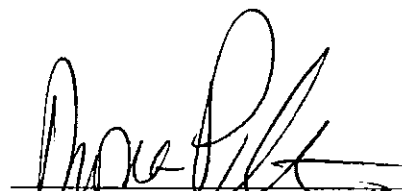
Plaintiff would show that Defendant Matthew Oliver Reardon should be required to pay to the Petitioner, Phyllis Marie Crowder, a reasonable sum as attorney's fees for having to bring forth this action and that all costs of Court should be taxed to Matthew Oliver Reardon.

WHEREFORE, PREMISES CONSIDERED, Plaintiff Phyllis Marie Crowder respectfully requests that the Court grant unto her the following relief:

1. That the Court find that there has been a material change in circumstances which have had an adverse effect on the minor child and that visitation with the Defendant cease.
2. That Phyllis Marie Crowder be awarded reasonable attorney's fees and costs suffered in bringing this matter; and,
3. That if mistaken for the relief prayed for and entitled to, then the Plaintiff prays for such other, further, general, specific or special relief to which she may be entitled.

RESPECTFULLY SUBMITTED, this the 25th day of August, 2020.

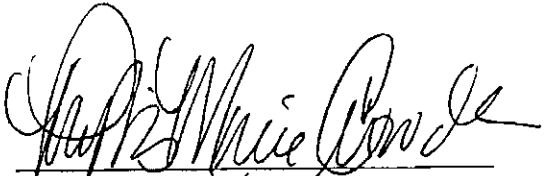

PHYLLIS MARIE CROWDER


MONA T. PITTMAN, MSB # 9754
Attorney for the Plaintiff
P. O. Box 2958
Oxford, Mississippi 38655
Telephone: (662) 234-9346
Facsimile: (662) 234-9748 (Facsimile)
mona@panola.com

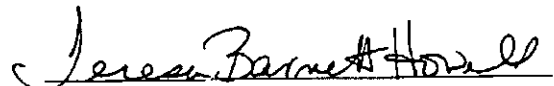
STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

Personally appeared before me, the undersigned authority in and for the aforesaid County and State, the within named, Phyllis Marie Crowder, who, after being first duly sworn, states that the matters contained in the above and foregoing Petition for Citation of Contempt are true and correct as therein stated.

This the 25 day of August 2020.


Phyllis Marie Crowder

SWORN TO AND SUBSCRIBED BEFORE ME, this the 25 day of August 2020.


NOTARY PUBLIC

MY COMMISSION EXPIRES:

6/15/2024

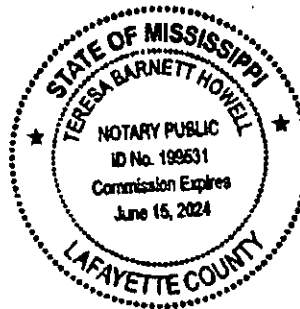


Exhibit B

FILED
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI
LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

2020 SEP 30 PM 12:48

PLAINTIFF

vs.

CLERK OF COURT

CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON

PA

DEFENDANT

PETITION FOR MODIFICATION AND OTHER RELIEF

COMES NOW the Plaintiff, Phyllis Marie Crowder, and files this her Petition for Modification and Other Relief against the Defendant, Matthew Oliver Reardon, and in support thereof would respectfully show unto the Court the following:

1.

This Court has personal and subject matter jurisdiction in this matter.

2.

That the Defendant, Matthew Oliver Reardon, is an adult resident citizen of Lafayette County, Mississippi, and may be served with process at his residence in Lafayette County, Mississippi, or wherever he may be found.

3.

That on May 22, 2018, This Court entered an Agreed Order of Modification regarding child visitation, a true and correct copy of which is attached hereto as Exhibit "A".

4.

That there has been a material change in circumstance that has adversely affected the minor child and therefore visitation with the Defendant has ceased. The Defendant abuses alcohol and/or other prescription or non-prescription drugs to the point that he no longer safely monitors the minor child while she is in the Defendant's care which has caused physical injury to the minor child at the hands of the Defendant's current wife at which point visitation with the Defendant ceased. The incident was reported to the State of Mississippi Child Protective Services and in the interim, the Plaintiff was advised to cease all visitation with the Defendant. The Plaintiff therefore requests the

Court and for a Guardian Ad Litem to be appointed for the minor child.

5.

Additionally the Plaintiff would show that the Defendant's behavior has become erratic both on social media and in person and the Plaintiff fears for the safety of the minor child for the Defendant to be exercising the current visitation in the midst of the pandemic.

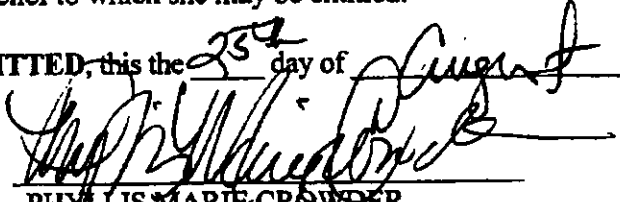
6.

Plaintiff would show that Defendant Matthew Oliver Reardon should be required to pay to the Petitioner, Phyllis Marie Crowder, a reasonable sum as attorney's fees for having to bring forth this action and that all costs of Court should be taxed to Matthew Oliver Reardon.

WHEREFORE, PREMISES CONSIDERED, Plaintiff Phyllis Marie Crowder respectfully requests that the Court grant unto her the following relief:

1. That the Court find that there has been a material change in circumstances which have had an adverse effect on the minor child and that visitation with the Defendant cease.
2. That Phyllis Marie Crowder be awarded reasonable attorney's fees and costs suffered in bringing this matter; and,
3. That if mistaken for the relief prayed for and entitled to, then the Plaintiff prays for such other, further, general, specific or special relief to which she may be entitled.

RESPECTFULLY SUBMITTED, this the 25th day of August, 2020.

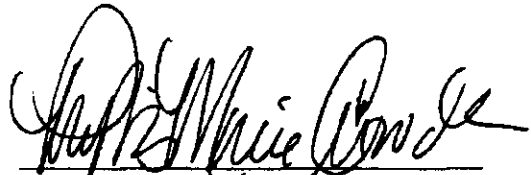

PHYLLIS MARIE CROWDER


MONA T. PITTMAN, MSB # 9754
Attorney for the Plaintiff
P. O. Box 2958
Oxford, Mississippi 38655
Telephone: (662) 234-9346
Facsimile: (662) 234-9748 (Facsimile)
mona@panola.com

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

Personally appeared before me, the undersigned authority in and for the aforesaid County and State, the within named, Phyllis Marie Crowder, who, after being first duly sworn, states that the matters contained in the above and foregoing Petition for Citation of Contempt are true and correct as therein stated.

This the 25 day of August 2020.

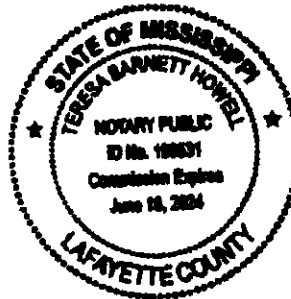

Phyllis Marie Crowder

SWORN TO AND SUBSCRIBED BEFORE ME, this the 25 day of August 2020.


NOTARY PUBLIC

MY COMMISSION EXPIRES:

6/15/2024



IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

PHYLLIS MARIE CROWDER-KESTER 2021 JAN 12 PM 3:58 PLAINTIFF/PETITIONER

CHANCERY CLERK

VS

CAUSE NO. CV2016-422W

BY DC. TJ

MATTHEW OLIVER REARDON

DEFENDANT/RESPONDANT

SUBPOENA DUCES TECUM

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

TO ANY LAWFUL OFFICER OR OTHER PERSONS AUTHORIZED TO SERVE SUBPOENAS:

WE COMMAND YOU TO SUMMON: DEPARTMENT OF CHILD PROTECTION SERVICES
C/O JENNIFER CANDLER
(OR ANY OTHER PRIVILEGED INDIVIDUAL)
1301 MONROE AVE OXFORD, MS 38655

Pursuant to ongoing Litigation in the Chancery Court of Lafayette County Mississippi between the above listed parties, you are hereby directed to produce the following records for inspection for the purpose of trial:

- 1) A CERTIFIED TRUE COPY OF ANY AND ALL COMPLAINTS INITIATED BY EITHER PARTY IN REGARDS TO THEIR MINOR CHILD, LYDIA ELISE REARDON (D.O.B: 08/19/2014)
- 2) A CERTIFIED TRUE COPY OF ANY AND ALL REPORTS CREATED DURING ANY INVESTIGATION BY ANY CASEWORKER ASSIGNED ALONG WITH ANY CONTACT MADE WITH ANY LAW ENFORCEMENT AGENCY AND POINT OF CONTACT IF APPLICABLE
- 3) A CERTIFIED TRUE COPY THE FINAL DISPOSITION GIVEN ON EACH COMPLAINT
- 4) AGENCY DIRECTIVE/PROTOCOL/STANDARD OPERATING PROCEDURE IN REGARDS TO ADVISING A CUSTODIAL PARENT TO DENY COURT ORDERED VISITATION RIGHTS TO THE OTHER PARENT, AND IF THIS AGENCY TO YOUR KNOWLEDGE HAS EVER GIVEN SUCH ADVICE IN REGARDS TO THE AFOREMENTIONED MINOR CHILD (LER).
- 5) THE OFFICIAL REASON FOR DEPARTURE OR TERMINATION OF CASE WORKER EMPLOYED BY THIS OFFICE BY THE NAME OF "MERCEDES" WHOM WAS THE ORIGINAL ASSIGNED CASE WORKER TO A COMPLAINT INITIATED BY THE PLAINTIFF IN OR AROUND JANUARY OF 2020.

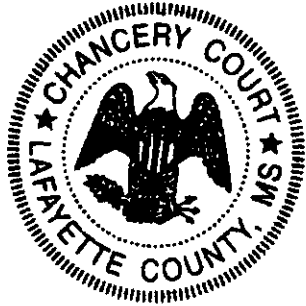
The items requested are to be produced and sent to Matthew O. Reardon, at 117 County Road 401 Oxford, MS postmarked no later than January 18, 2021 with a second certified copy of answers to the above stated requests to be sent to the opposing council on record, Mona Pittman, at PO Box 2958 Oxford, MS 38655

IF IN ANY EVENT SHOULD THE REQUESTS AFOREMENTIONED NOT BE MET BY THE DATE SPECIFIED HEREIN, YOU ARE HEREBY COMMANDED TO APPEAR AT THE LAFAYETTE COUNTY CHANCERY COURTHOUSE FOR TRIAL ON JANUARY 28, 2021 AT 9:30AM IN JUDGE WHITWELL'S COURTROOM TO TESTIFY AND GIVE ANSWER TO THE REQUESTS STATED, AND ALSO TO PROVIDE GOOD CAUSE AS TO WHY THE REQUESTS IN THIS DOCUMENT COULD NOT BE MET BY THE REQUESTED DATE SPECIFIED HEREIN

WITNESS MY SIGNATURE AND OFFICIAL SEAL OF OFFICE THIS 11TH DAY OF JANUARY, 2021

QUESTIONS MAY BE ADDRESSED TO:

Matthew Reardon
117 CR 401
Oxford, MS 38655
matt@mattreardon.com
(662)812-1613



BY Zina Johnson
Deputy Clerk

PROOF OF SERVICE – SUBPOENA DUCES TECUM

I, the undersigned process server/Sheriff served the Subpoena *Duces Tecum* upon the person or entity named above in the manner set forth below (process server must check proper space and provide all additional information that is requested and pertinent to the mode of service used):

☒ **Personal Service.** I personally delivered copies to Jennifer Cardler on the 12 day of 2021, 2006, where I found said person in Lafayette County of the State of Mississippi.

☐ **Residence Service.** After exercising reasonable diligence, I was unable to deliver copies to said person within _____ county, Mississippi. I served the Subpoena on the _____ day of _____, 2020, at the usual place of abode of said person by leaving a true copy of the Subpoena with _____ who is the _____ (here insert wife, husband, son, daughter or other person as the case may be) a member of the family of the person served above the age of sixteen years and willing to receive the Subpoena, and thereafter on the _____ day of _____, 2020, I mailed (by first class mail, postage prepaid) copies to the person served at his or her usual place of abode where the copies were left.

☐ By certified, first class U.S. Mail, postage prepaid to the following address outside Mississippi: _____.

☐ I was unable to deliver the Subpoena.

TO BE COMPLETED BY PROCESS SERVER:

At the time of service, I was at least 18 years of age and not a party to this action.

Process server must list below: (Please print or type)

Name: Madelyn Beardon Address: 503 CR 371 Water Valley, MS 38965

Telephone No: 662-816-5590 Social Security No: 427-71-7484

State of Mississippi County of Lafayette

Personally appeared before me, the undersigned authority in and for the state and county aforesaid, the within named Jennifer Cardler, who being first by me duly sworn states on oath that the matters and facts set forth in the foregoing "Proof of Service" are true and correct as therein stated.

Madelyn Beardon
Signature of Process Server

Sworn to and subscribed before me this the 12 day of January, 2021.

Ashley Baker
Notary Public

TO BE COMPLETED BY SHERIFF:

This the _____ day of _____, 2020.

SHERIFF OF _____ COUNTY, MISSISSIPPI

BY: _____
DEPUTY SHERIFF

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

CHANCERY CLERK

PLAINTIFF

vs.

BY DC

JS

CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON

DEFENDANT

ORDER SETTING

This matter, is hereby set for hearing on the Plaintiff's Motion to Stay, for the 28th day of January, 2021, at the Lafayette County Chancery Building in Oxford, Mississippi, at 9:30 a.m. or as soon thereafter as the parties may be heard.

ORDERED, ADJUDGED and DECREED on this, the 14th day of ~~October~~ ^{January 2021}, 2020.

Russell Watson

CHANCELLOR

This Order Prepared by:

Mona Pittman

MONA T. PITTMAN, MSB # 9754

Attorney for Petitioner

P. O. Box 2958

Oxford, MS 38655

662-234-9346

662-234-9748 (facsimile)

mona@panola.com

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

2021 JAN 15 AM 11:27

PHYLLIS MARIE CROWDER CHANCERY CLERK

PLAINTIFF

vs.

BY DC

TS

CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON

DEFENDANT/RESPONDANT

ORDER SETTING

This matter, is hereby set for hearing on the Defendant's Motion to Dismiss, for the 28th day of January, 2021, at the Lafayette County Chancery Building in Oxford, Mississippi, at 9:30 a.m. or as soon thereafter as the parties may be heard.

ORDERED, ADJUDGED and DECREED on this, the 14th day of January, 2021.

Robert L. Watson

CHANCELLOR

This Order Prepared by:

MATTHEW O. REARDON
The Pro Se Defendant/Litigant
117 CR 401
Oxford, MS 38655
662-812-1613
matt@mattreardon.com

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

2021 JAN 15 AM 11:27

PHYLLIS MARIE CROWDER-KESTER

CHANCERY CLERK

PLAINTIFF

VS.

BY DC.

TJ

CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON

DEFENDANT

SUBPOENA DUCES TECUM TO YOUTH COURT
FOR RECORDS INVOLVING A CHILD

This Court, having received an application for records involving a child, which application is attached and incorporated herein, does hereby command the Clerk of this Court to issue this subpoena duces tecum to:

THE YOUTH COURT OF LAFAYETTE COUNTY, MISSISSIPPI

For copies of all records within such application to be transferred to this Court, whereupon this Court shall conduct an in camera inspection of the records, in accordance with procedures set for in *Pennsylvania v. Ritchie*, 480 U.S. 39 (1987), to determine which records should be disclosed to the party; and further, this Court shall, at all times, protect the confidentiality of the records to the extent required of the Youth Court under Mississippi's Youth Court Law. Pursuant to Rule 6(b) of the Uniform Rules of Youth Court Practice, the Youth Court may require a hearing to determine whether there is a legitimate interest for access to the requested records

SO ORDERED, this the 14th day of January, 2021.


CHANCELLOR

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER

PLAINTIFF

VS.

CAUSE NO.: CV2016-422(W)

MATTHEW OLIVER REARDON

DEFENDANT

SUMMONS

TO: THE YOUTH COURT OF LAFAYETTE COUNTY, MS

300 N LAMAR

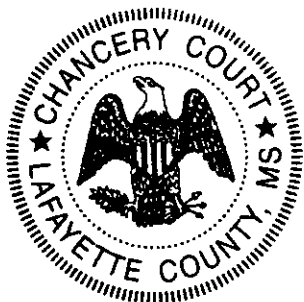
OXFORD, MS 38655

NOTICE TO RESPONDENT

THE SUBPOENA DUCES TECUM AND APPLICATION FOR RECORDS WHICH IS ATTACHED TO THIS SUMMONS IS IMPORTANT AND YOU MUST TAKE IMMEDIATE ACTION TO PROTECT YOUR RIGHTS.

You are to provide copies of all Youth Court records, per the application for records involving a child, whereupon this Court shall conduct an in camera inspection of the records, in accordance with the procedures set for in Pennsylvania v. Ritchie, 480 U.S 39 (1987), to determine which records should be disclosed to the party; and further, this Court shall, at all times, protect the confidentiality of the records to the extent required of the Youth Court under Mississippi's Youth Court Law. .

Issued under my hand and seal of said Court, this the 15th day of January, 2021.



Sherry Wall
SHERRY J. WALL
CHANCERY CLERK
LAFAYETTE COUNTY

By: *Tina Johnson*
Deputy Clerk

THE CHANCERY COURT OF CHANCERY COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER

PLAINTIFF

VS.

CAUSE NO. CV2016-422 (W)

MATTHEW OLIVER REARDON

DEFENDANT

SUBPOENA DUCES TECUM

TO: **Lee County Youth Court**
Tupelo, Mississippi

Pursuant to and in accordance with Rule 45, MS Rules of Civil Procedure, you are hereby commanded to produce as evidence the records requested below within ten (10) days after service of this Subpoena, in the above-styled and numbered action.

The records to be produced are as follows:

Any and all records pertaining to Lydia Reardon (dob 8/19/2014)

(The Subpoena Duces Tecum may be satisfied by mailing or emailing the above described documents to Judge Robert Q. Whitwell, Lafayette County Chancery Court, P.O. Box 49, Oxford, MS 38655)

Given under my hand and the official seal of the Court this the 19th day of January.

2021.



Sherry Wall
CHANCERY COURT CLERK

BY: Jina Johnson
Deputy Clerk

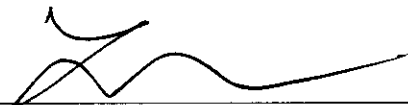
CERTIFICATE OF SERVICE

I, the undersigned, Guardian ad Litem, hereby certify that I have this day emailed, a true and correct copy of the above and foregoing Subpoena Duces Tecum to the following:

Mona Pittman, Esq.
mona@panola.com

Matt Reardon, pro se
matt@mattreardon.com

Dated this the 15 of January, 2021.



LORI M. SOLINGER, MSB # 103029
P.O. Box 1788
Batesville, MS 38606
662-832-6773

FILED
STATE OF MISSISSIPPI
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER 2021 JAN 21 PM 2:36 PLAINTIFF
VS. CAUSE NO. CV2016-422(W)
MATTHEW OLIVER REARDON TJ DEFENDANT

SUBPOENA DUCES TECUM

TO: DeSoto County Sheriff's Department
3091 Industrial Drive W
Hernando, MS 38632

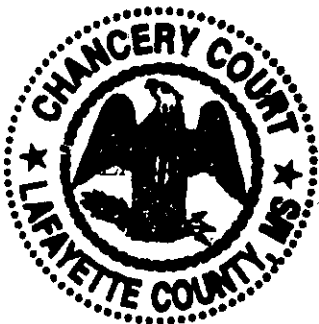
YOU ARE HEREBY COMMANDED by the authority of the above Court and pursuant to Rule 45(b)(2) of the Mississippi Rules of Civil Procedures, to produce as evidence the records requested below in the above-styled and numbered action at 9:30 a.m. on Thursday, January 28, 2021 at the Lafayette County Chancery Courthouse located in Oxford, Mississippi, or, in the alternative, forward said records to Mona Pittman, Esq., via electronic mail at mona@panola.com or via facsimile at 662-234-9748 or hand delivery at 1403 East Jackson Avenue, Oxford, Mississippi, on or before 9:00 a.m. on Thursday, January 28, 2021.

1. Any and all arrest and/or incident reports regarding Matthew Oliver Reardon.

Issued under my hand and seal of said Court this the 19th day of January, 2021.

Sherry Wall
CHANCERY COURT CLERK
LAFAYETTE COUNTY, MISSISSIPPI

BY: Gloria Nicks
DEPUTY CLERK



Of Counsel:

Mona T. Pittman, MSB #9748
P. O. Box 2958
1403 E. Jackson Avenue
Oxford, MS 38655
Telephone: (662) - 234-9346
Facsimile: (888) - 922-5946

DECLARATION OF SERVICE

I declare under penalty of perjury under the laws of the State of Mississippi that I have this date served this Subpoena Duces Tecum on the following person on the date indicated:

Served On: DeSoto County Sheriff's Department

Date of Service: January 19, 2021

Place of Service: DeSoto County Sheriff's Department via fax
662-469-8542

Sarah McMillian
SIGNATURE OF SERVER

109 Willow Knls Oxford
ADDRESS OF SERVER MS 38655

January 19, 2021
DATE

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY, MISSISSIPPI

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER

2021 JAN 21 PM 2:36

PLAINTIFF

VS.

CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON

DEFENDANT

SUBPOENA DUCES TECUM

TO: Lafayette County Sheriff's Department
711 Jackson Avenue East
Oxford, Mississippi 38655

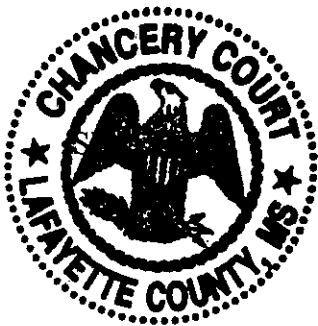
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1. Any and all arrest and/or incident reports regarding Matthew Oliver Reardon.

Issued under my hand and seal of said Court this the 19th day of January, 2021.

Sherry Wall
CHANCERY COURT CLERK
LAFAYETTE COUNTY, MISSISSIPPI

BY: Yfona Nicks
DEPUTY CLERK



Of Counsel:

Mona T. Pittman, MSB #9748
P. O. Box 2958
1403 E. Jackson Avenue
Oxford, MS 38655
Telephone: (662) - 234-9346
Facsimile: (888) - 922-5946

DECLARATION OF SERVICE

I declare under penalty of perjury under the laws of the State of Mississippi that I have this date served this Subpoena Duces Tecum on the following person on the date indicated:

Served On: Leflore Co Sheriff's Dept
Date of Service: 1/19/21
Place of Service: Leflore Co Sheriff's Dept

[Signature]
SIGNATURE OF SERVER

1403 Jackson Ave
ADDRESS OF SERVER

1/19/21
DATE

FILED
STATE OF MISSISSIPPI
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER JAN 21 PM 2:36 PLAINTIFF

VS. COUNTY CLERK CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON BY: TS DEFENDANT

SUBPOENA DUCES TECUM

TO: Olive Branch Police Department
10470 MS 178
Olive Branch, MS 38654

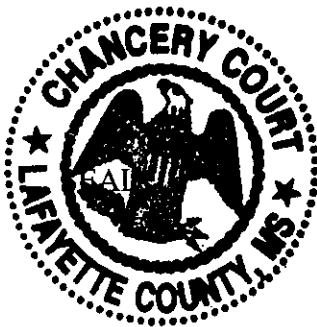
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1. Any and all arrest and/or incident reports regarding Matthew Oliver Reardon.

Issued under my hand and seal of said Court this the 19th day of January, 2021.

Sherry Wall
CHANCERY COURT CLERK
LAFAYETTE COUNTY, MISSISSIPPI

BY: Wanda Nick
DEPUTY CLERK



Of Counsel:

Mona T. Pittman, MSB #9748
P. O. Box 2958
1403 E. Jackson Avenue
Oxford, MS 38655
Telephone: (662) - 234-9346
Facsimile: (888) - 922-5946

DECLARATION OF SERVICE

I declare under penalty of perjury under the laws of the State of Mississippi that I have this date served this Subpoena Duces Tecum on the following person on the date indicated:

Served On: Olive Branch Police Department
Date of Service: January 19, 2021
Place of Service: Olive Branch Police Department via fax
662-892-9404

Grah McMillian
SIGNATURE OF SERVER

109 Willow Kule
ADDRESS OF SERVER Oxford MS
38655

January 19, 2021
DATE

FILED
STATE OF MISSISSIPPI
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER

2021 JAN 21 PM 2:36

PLAINTIFF

VS.

CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON

BY: *TJ*

DEFENDANT

SUBPOENA DUCES TECUM

TO: Oxford City Police Department
715 Molly Barr Road
Oxford, Mississippi 38655

YOU ARE HEREBY COMMANDED by the authority of the above Court and pursuant to Rule 45(b)(2) of the Mississippi Rules of Civil Procedures, to produce as evidence the records requested below in the above-styled and numbered action at 9:30 a.m. on Thursday, January 28, 2021 at the Lafayette County Chancery Courthouse located in Oxford, Mississippi, or, in the alternative, forward said records to Mona Pittman, Esq., via electronic mail at mona@panola.com or via facsimile at 662-234-9748 or hand delivery at 1403 East Jackson Avenue, Oxford, Mississippi, on or before 9:00 a.m. on Thursday, January 28, 2021.

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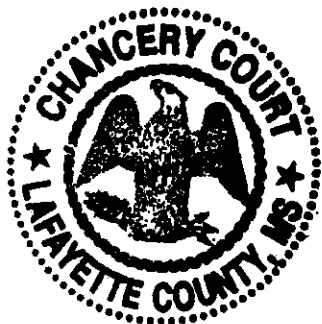
Sherry Wall

CHANCERY COURT CLERK
LAFAYETTE COUNTY, MISSISSIPPI

BY:

Ulfred Nick

DEPUTY CLERK



Of Counsel:

Mona T. Pittman, MSB #9748
P. O. Box 2958
1403 E. Jackson Avenue
Oxford, MS 38655
Telephone: (662) - 234-9346
Facsimile: (888) - 922-5946

DECLARATION OF SERVICE

I declare under penalty of perjury under the laws of the State of Mississippi that I have this date served this Subpoena Duces Tecum on the following person on the date indicated:

Served On Oxford City Police Dept
Date of Service: 1/19/21
Place of Service: Oxford City Police Dept

[Signature]
SIGNATURE OF SERVER

1403 Jackson Ave
ADDRESS OF SERVER

1/19/21
DATE

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY

2021 JAN 25 PM 4:42

CLERK OF COURT

PA

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER)
)

V.)
)
)

NO. CV2016-422W

MATTHEW OLIVER REARDON

**DEFENDANT'S MOTION TO QUASH, SUPPRESS, AND SANCTION PETITIONER AND
PETITIONER'S LEGAL COUNCIL**

Comes now before the court Matthew Reardon, your confused, mentally anguished, and dumfounded Respondent/Defendant, and hereby moves this court to quash, suppress, and sanction the Petitioner and her legal counsel after their continued insistence through "grabbing at straws" after one failed attempt after another failed attempt to unfairly berate and overwhelm the defendant by continuing to go down additional avenues or "rabbit holes." Movant states before this court that this is precisely the case yet again and the motive and reasoning behind the latest move by petitioner and her council to Subpoena records from 4 law enforcement agencies should be abundantly clear to this court that the Petitioner and her council's soul goal at this point is to cause or create unnecessary delay in order to further harass and victimize the Movant on matters that the plaintiff and her council knowingly caused and/or played a significant part in creating. **There are several major issues at hand now that this court has been made complete aware of which include among others the Petitioner's Attorney knowingly defrauding this court as well as the defendant/respondent through filing a fraudulent petition in which the notarized affidavit was duplicated and used twice. The September 30th, 2020 Petition filed by the Petitioner is attested to August 26, 2020 which was the original petition filed. The Notary attested to the document from August 26, 2020 not September 30th, 2020. This is an incurable error, an error that cannot be characterized as a "Clerical Error" and one of profoundly serious nature because of the liability such careless and negligent actions pose on the notary public herself. Petitioner's Attorney even had the audacity to not even so much as issue a response in the 10-day window allotted for response further showing the willful and intentional efforts**

to “ride it out” and to take it further by poking and prodding in other areas of defendant’s life which not only was she not privy to nor did she have any reason to ascertain based on the original petition filed with this court. In both jurisdictions for which the plaintiff subpoenaed, there is currently ongoing legal matters both in defending and litigating erroneous retaliatory attacks on Movant whom was only seeking out assistance after the petitioner went to the extents she did in conspiring to falsely accuse the Movant of rape. Due to both matters being open and in litigation, Movant asserts that petitioner is not privy to such information, not now and quite possibly never. After all, was this cause not based on Petitioner’s ATTEMPT to reduce even further the Movant’s visitation with his minor child whom he has demonstrated. This court has an obligation to look out for the best interest of the minor child, and Movant asserts that he has sustained prejudicial treatment by this court counter to the obligation that a family court is expected to provide on normal circumstances because he is representing himself pro se, however Movant asserts his inability to afford outside council due to the extremely malice acts of the petitioner, her attorney, and certain individuals and government officials in Lafayette County.

Movant asserts that there are now multiple fatal errors now in play. **MRCP Rule 45 C (1) calls for a Subpoena to be executed on a witness personally. Rule 45 (c) (2) calls for the names of the PERSONS served. A staff member for petitioner’s attorney “SERVED” the subpoena for Olive Branch PD AND Desoto County Sheriffs Office via fax with no acknowledgement from any PERSON. Furthermore MRCP 45(d)(2)(a) states that the subpoena MUST give no less than 10 days notice to comply. All subpoenas issued by petitioner were issued on the 19th, thus less than 10 days before trial given that trial is on 1/28/2021, Therefore these subpoenas were improperly served and as such the contents of any discovery cannot be produced and used for trial purposes, and Movant hereby would demand that petitioner’s counsel destroy any and all information that may have stemmed from such subpoena, and Movant requests this court to order a stop to the production of such records due to privacy and confidentiality purposes as well as non-conforming to the established rules laid out in regards to service of a subpoenas. MRCP 45(D)(1)(A) states that upon timely motion, the court from which a subpoena was issued shall quash or modify a subpoena if it fails to allow reasonable time for compliance; or requires disclosure of privileged or protected matter. Movant states both**

of these are the case along with the purpose of the petitioner even stemming this is to harass and cause unnecessary delay. Finally, MRCP 45(f) lays out this courts power granted to sanction a party in order to curb abuse of such rules and Movant finds this is completely warranted given the other examples of the defrauding of this court and further society by the petitioner and her attorney. Movant gives the aforementioned as just reasons for this court to **QUASH, SUPPRESS, STRIKE, AND SANCTION the Petitioner and her legal counsel** for their knowingly unethical and unscrupulous actions in trying to further tear down an innocent man, father, patriot, and veteran whom for the entire time has clearly sought out equal protections of State and Federal Laws. **Movant would harshly object in anticipation to Petitioner's council asking for a continuance as this matter has been delayed for long enough keeping Movant from normal exercised visitation with his minor child for over a year.**

Movant has stated numerous times now in this particular cause that Petitioner has a history of making false reports, and that retaliation resulting from her being picked up on a warrant cut by Olive Branch Police Department stemmed what all signs show to be another "Witch-Hunt" of the respondent Combined with the "Systemic Kidnapping" of the Defendant's minor child for the past year that petitioner went in gross contempt of this court's visitation agreement. **Meanwhile, the Petitioner has continued to "bite the hand that feeds her" through the perpetuation of libelous, defaming, and dangerous lies that are now clearly insistent upon the initiation of additional proceedings outside of this court and movant states most certainly warrants a criminal investigation due to the continued commission of crimes which have been directed at the Movant. While this constitutional crisis stemmed from the petitioner and her council along with the assistance of certain other John and Jane Does to be listed, it is the bizarre handling of this matter by local agencies and even the courts that have exacerbated this issue to it now being one that quite frankly has grown to levels the Movant never imagined he would ever see. Not immediately rebuking and condemning this sort of behavior and allowing Petitioner to steadily play her guessing game in fishing for anything and everything to try to hang over the movants head now takes on the**

And that all of this was a conjoined effort to remove the liability off of Lafayette County, and slide the Mayor, Robyn Tannehill's most outspoken opponent/political adversary out of the way in order to suppress information and prevent electable issues and her mayoral run.

Where is the line drawn on the extent that this county, the state, and this court aids and abets the petitioner and in the commission of her crimes which have been clearly stated, or is it the fact that the county, the state, and this court is so far committed that it refuses to turn back no matter what the petitioner does and gets away with? Movant puts Lafayette county and the state of Mississippi on notice of it's grievous violations of not only Its own state constitution and laws, but Federal Laws through the intentional violation of 42 USC 1985, 42 USC 1983, and furthermore have flagrantly denied Movant the equal protections under State and Federal Laws after previous notices of violation have been issued by Movant in regards to the same criminal conduct involving knowingly false accusations alleged by the petitioner in this cause over the last three and a half years. It is blatantly clear to see the end goal is exactly what Movant has asserted since May of 2017. That Movant's child has been USED as a manipulation tool by her mother, her attorney/attorneys, Lafayette County, and most certainly Chancery Court and Circuit Court In order to steer and manipulate a desirable outcome which benefits the county and the minor child's mother, and fully deprives Movant, a Marine Corps Veteran, of his civil rights along with his due process rights, which have risen beyond that of a civil matter to the level of criminal conduct by acts of criminal conspiracy. Movant has continuously provided notice and sought out protections by Agencies and this court which have neglectfully gone unheard, unnoticed, and have not been acted upon despite undeniable evidence to back all claims. Movant completely objects, rejects, condemns, and rebukes the actions of the responsible parties and this court to the highest degree for flat out refusing to assess, read, and respond to any of the motions and evidence brought forward by the Movant which makes clear that the petitioner is in direct

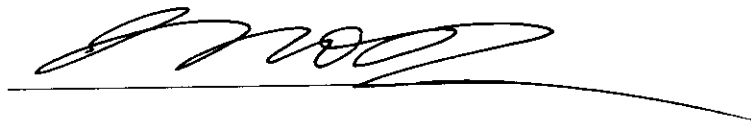
violation of perjury, criminal conspiracy, and worse. It is beyond time that arrests and indictments be made in this matter, and the Movant does not deserve be be further targeted and attacked. The Movant should be commended for standing firm and walking tall in the face of all adversity and evil in refusing to settle for anything less than justice prevailing against all parties whom played a material part in the undeserving life altering abuse and destruction that the movant has sustained.

WHEREFORE ALL PREMISES CONSIDERED

Movant prays that this court dismiss this cause stemmed by petitioner on 1/28/2021 and to issue an order ordering each agency to stand down from petitioner's subpoena due to them being invalid and due to the information sought. Movant wants to see his daughter unimpeded by petitioner and prays that this court direct some type of fitting punishment to her and her attorney for the grievous actions they have demonstrated in this entire matter. Movant reasserts his counter-claim in the amount of \$15,000 for time expended as well as mental anguish stemming.

Movant also prays for any additional relief be it special or general for which he may be entitled

Respectfully submitted this 25th Day of January 2021

A handwritten signature in black ink, appearing to read 'Matthew Reardon', is written over a horizontal line.

Matthew Reardon
Pro Se Defendant/Movant
117 CR 401
Oxford, MS 38655
662-812-1613
matt@mattreardon.com

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER

PLAINTIFF

VS.

2021 JAN 28 PM 3:18

CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON

DEFENDANT

AGREED TEMPORARY ORDER

THIS CAUSE, having come before this Court on January 28, 2021, and the parties, having announced to the Court they have reached an agreement, the Court does hereby finds as follows:

1. This Court has continuing subject matter jurisdiction and personal jurisdiction of the parties and venue is proper for this cause of action;
2. Phyllis Marie Crowder-Kester and Matthew Oliver Reardon are the natural parents of a minor female child, namely L.E.R.;
3. The Father shall continue to pay child support for the minor child as previously ordered by this Court;
5. The Father shall resume his visitation with the parties' minor child every other weekend beginning from 6:00 p.m. Friday evening until 6:00 p.m. Sunday evening beginning on Friday, January 29, 2021. The parties shall meet at the Hilltop Chevron to exchange the minor child.
6. Neither party shall transport the minor child without the proper child restraint seat in place.
7. Neither party shall call CPS on the other without first discussing the same and with the consent of the Guardian ad Litem.
8. Neither party shall talk disparagingly about the other in front of the minor child, on social media or otherwise.
9. All provisions of the previous Order of this Court shall remain in full force and effect unless modified herein.

10. This matter is hereby continued until the 23rd day of March, 2021, for review. at the Lafayette County chancery Building in Oxford, MS at 9:30 am.

SO ORDERED on this, the 28th day of January, 2021.

Amelia Watson
CHANCELLOR

Prepared by:

Mona Pittman

MONA T. PITTMAN, MSB # 9754
Attorney for Plaintiff
P.O. BOX 2958
OXFORD, MS 38655
TELEPHONE: (662) 234-9346
FACSIMILIE: (662) 234-9748
mona@panola.com

Agreed:

Phyllis Marie Crowder-Kester
PHYLLIS MARIE CROWDER-KESTER, PLAINTIFF

Mona Pittman
MONA T. PITTMAN, ESQ., MS BAR NO. 9754
ATTORNEY FOR PLAINTIFF

Matthew Oliver Reardon
MATTHEW OLIVER REARDON
PRO SE DEFENDANT

Lori Solinger
LORI SOLINGER, ESQ., MSB NO. 103029
GUARDIAN AD LITEM

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY, MISSISSIPPI
2021 MAR 23 AM 10:02
CHANCERY CLERK

PHYLLIS MARIE CROWDER-KESTER
PLAINTIFF

BY TS

VS.

CAUSE NO. CV2016-422(W)

MATTHEW OLIVER REARDON
DEFENDANT

AGREED ORDER

The parties, having announced that they have come to a mutual agreement regarding issues of child visitation, and the Court having reviewed the same and being fully advised in the premises, hereby Orders as follows:

1. Jurisdiction and venue are proper in this Court;
2. Phyllis Marie Crowder-Kester and Matthew Oliver Reardon are the natural parents of a minor female child, namely L.E.R., born to them outside of wedlock;
3. Pursuant to the Original Order dated 8/3/2016, the parties agree that they will share joint legal custody with the mother having primary physical custody and the Father receiving standard visitation rights, in no event less than those visitation rights set out in the visitation schedule.

4. Each party agrees to maintain their home, vehicle(s), and personal property including that of the minor child in such a manner befitting of the minor child
5. Disciplinary measures involving any type of corporal punishment are to be administered by Phyllis Marie Crowder-Kester or Matthew Reardon only
6. Child Support will remain the same at \$400 per month as previously ordered by this court. Upon becoming gainfully employed, Matthew Reardon's child support obligation may be reviewed by this Court.
7. Neither party will transport the minor child in a vehicle without a properly installed, age appropriate child restraint device.
8. In an effort to forgo any unnecessary civil litigation and frivolous criminal prosecution, Matthew Reardon agrees to rescind his counter-claim filed with this court against Crowder-Kester and her counsel on record and also agrees to release Mrs. Crowder-Kester from any civil liability or contempt stemming from her actions as they relate to this particular cause at hand. Likewise, Mrs. Crowder-Kester agrees to withdraw her criminal complaint filed against Mr. Reardon in Justice Court dating back to February of 2020, a matter which was slotted for trial on 3/22/2021 that has since been continued to a later date. Both Parties agree to comply within 5 days of this agreement and **plaintiff agrees to send email correspondence of her intent to dismiss to Bella J Chain at bjchainiii@gmail.com and CC'ing Defendant at matt@mattreardon.com.**

9. The Guardian Ad Litem is hereby dismissed and relieved of her duties in this matter and all Guardian Ad Litem Fees and Court Costs will hereby be taxed to the Plaintiff in this cause, Phyllis Crowder-Kester as agreed upon at the initial hearing.
10. Neither party will communicate any grievance to Department of Child Protective Services. If any complaint or grievance arises which serious in nature, the complaining party is to seek assistance from local law enforcement in the proper jurisdiction.
11. From the date of this agreement going forward, Parties agree not to further publicly divulge new information in regards to any current or past legal matters between them, along with any other issues or disagreements between the parties. Any public records or productions which have not been published must be redacted of the other party prior to being published or produced.

SO ORDERED on this, the 23rd day of March, 2021.


CHANCELLOR

Prepared by:

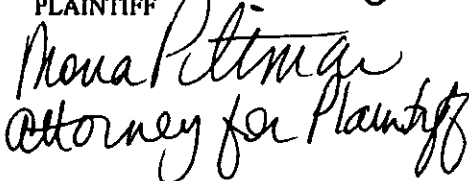
MATTHEW REARDON
PRO-SE DEFENDANT
117 CR 401
OXFORD, MS 38655
TELEPHONE: (662) 812-1613
matt@mattreardon.com

AGREED:


PHYLLIS MARIE CROWDER-KESTER
PLAINTIFF

MATTHEW OLIVER REARDON
DEFENDANT


LORI SOLINGER
GUARDIAN AD-LITEM


Mona Pittman
Attorney for Plaintiff

9. The Guardian Ad Litem is hereby dismissed and relieved of her duties in this matter and all Guardian Ad Litem Fees and Court Costs will hereby be taxed to the Plaintiff in this cause, Phyllis Crowder-Kester as agreed upon at the initial hearing.
10. Neither party will communicate any grievance to Department of Child Protective Services. If any complaint or grievance arises which serious in nature, the complaining party is to seek assistance from local law enforcement in the proper jurisdiction.
11. From the date of this agreement going forward, Parties agree not to further publicly divulge new information in regards to any current or past legal matters between them, along with any other issues or disagreements between the parties. Any public records or productions which have not been published must be redacted of the other party prior to being published or produced.

SO ORDERED on this, the ____ day of March, 2021.

Prepared by:

CHANCELLOR

MATTHEW REARDON
PRO-SE DEFENDANT
117 CR 401 OXFORD, MS 38655
TELEPHONE: (662) 812-1613
matt@mattreardon.com

AGREED:

PHYLLIS CROWDER-KESTER
PLAINTIFF

Matthew Reardon

MATTHEW OLIVER REARDON
PRO-SE DEFENDANT

MONA PITTMAN
COUNSEL FOR PLAINTIFF

LORI SOLINGER
GUARDIAN AD-LITEM